

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON  
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

# **Counterfactual On-Briefs Panel Opinion**

## **Disposition**

Decided May 1, 2026.

Leora Benton appeals the judgment entered for Blue Cedar Compliance, Inc. on her Title VII retaliation claim. She challenges both the district court's narrow exclusion of a late declaration subject under Federal Rules of Civil Procedure 26 and 37 and its grant of summary judgment on the admitted record. The appeal was submitted without oral argument after completion of briefing.

We affirm. The district court acted within its discretion when it excluded only the materially new subject in Tessa Wynn's November declaration while preserving Wynn's timely disclosed comparator testimony. On the merits, we review summary judgment de novo and view the admitted proof in Benton's favor. That proof supports suspicion about timing, scoring, and the detail supplied in Blue Cedar's explanations, but it does not permit a reasonable finding that retaliation was the but-for cause of Pike's selection decision. The district court's judgment therefore stands in full.

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## Jurisdiction and procedural history

The district court entered final judgment on December 19, 2025, disposing of the only claim between the parties. Benton filed a timely notice of appeal on January 16, 2026. We have jurisdiction over the final decision and may review the antecedent December 1 exclusion order. The joint appendix contains the certified district-court record relevant to both questions.

Benton alleged that Blue Cedar selected her in a March 2025 reduction in force because she opposed a sex-based assignment practice and filed an EEOC charge. Blue Cedar accepted protected activity and adverse action for purposes of summary judgment, but argued that a genuine savings target and operational-coverage judgments caused the selection. Before addressing that motion, the district court excluded a new motive-related statement first supplied through Wynn after the disclosure cutoff. It later held that the remaining evidence could not support the required ultimate causal finding. Our review keeps the evidentiary and merits questions distinct.

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## The disclosure chronology

Benton identified Wynn as a person with comparator information; Blue Cedar deposed her on October 2, 2025. That deposition addressed the possible transfer of the Northline work but did not disclose a statement linking Benton's protected activity to that transfer. Wynn recalled and reported the additional subject between October 13 and October 15. Counsel received it before the October 17 supplementation cutoff but neither served a subject-specific supplement nor sought leave to extend the schedule.

Wynn signed a declaration on November 3. Benton served it on November 4 and filed it with her November 10 summary-judgment opposition. The new passage attributed to Voss a March 7 remark that referred to Benton's HR and EEOC problem and asked whether Wynn could take Northline if Benton's position were removed. Blue Cedar promptly sought exclusion. The district court considered the parties' chronology and proffers, excluded that passage and the declaration embodying it, and left Wynn's previously disclosed comparator testimony available for the merits.

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## Rule 37 standard

Rule 26 required timely correction or supplementation when the earlier disclosure had become materially incomplete and the additional information had not otherwise been made known during discovery or in writing. Rule 37(c)(1) generally prevents use of undisclosed information on a motion unless the failure was substantially justified or harmless. We review the resulting exclusion decision for abuse of discretion.

The relevant inquiry considers surprise, the ability to cure, disruption, the importance of the evidence, and the explanation for the failure. The first four considerations principally inform harmlessness, while the explanation bears on justification. Importance does not automatically excuse nondisclosure; important new evidence can create greater need for a fair opportunity to investigate and respond. Nor must a court choose between admitting everything and excluding a witness entirely. A tailored restriction may preserve properly disclosed subjects while preventing use of a materially new one. We examine the actual ruling on that basis, without invoking a sham-affidavit doctrine the district court did not apply.

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## Exclusion analysis

The district court reasonably found surprise because the new statement added protected-activity language absent from Wynn's deposition and earlier subject descriptions. Blue Cedar could not probe the recollection before discovery closed, examine Voss about the precise wording, or explore the circumstances in the ordinary sequence. A cure after November 10 would have required reopening discovery while dispositive briefing was underway and shortly before the scheduled trial term. The statement was important, but that consideration did not erase the resulting prejudice.

The court also acted within its discretion in assessing counsel's explanation. Benton knew the new subject by October 15, two days before the supplementation cutoff, yet waited for a signed declaration rather than disclose the substance or seek leave. The court did not attribute bad faith to Benton and did not exclude Wynn as a comparator witness. It selected the narrower remedy of barring the new subject and declaration. That calibrated response followed the governing factors and preserved the timely evidence. We therefore affirm the December 1 order.

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## Summary-judgment and retaliation standards

We review summary judgment de novo, applying the same Rule 56 standard as the district court. The admitted evidence and reasonable inferences are viewed in Benton's favor, and credibility disputes may not be resolved against her. A dispute is material only when it could affect the result under governing law, and speculation cannot substitute for evidence from which a reasonable jury could return a verdict for the nonmovant.

Under the burden-shifting framework described in *Foster v. University of Maryland-Eastern Shore*, a plaintiff may establish a prima-facie case, respond to an articulated legitimate reason with evidence of pretext, and ultimately show that retaliation was a but-for cause. The final inquiry is not whether the employer followed the best process or made the wisest business choice. Nor must a plaintiff produce direct evidence. The combined circumstantial record must nevertheless support a reasonable finding that the protected activity was the real reason and that the adverse action would not otherwise have occurred.

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## **Knowledge, timing, and the reduction in force**

The admitted record establishes a prima-facie case. Benton complained internally on January 17 and filed an EEOC charge on February 3. Blue Cedar received the charge materials on February 10. Pike, the final decisionmaker, received and opened the routed packet, replied to a preservation request, attended a related meeting, and knew before March 24 that Benton had raised an assignment concern and that an EEOC matter existed. Six weeks separated receipt from termination.

Blue Cedar, however, documented a genuine annual savings target of \$612,000. Its selected plan eliminated five filled positions and two vacancies and projected \$618,400 in savings. The process encompassed seven positions, not Benton alone. The company's contemporaneous materials identified continuity, travel availability, automation support, and redistribution of management work as selection concerns. The short interval and Pike's knowledge support an initial causal inference, but neither fact by itself permits a jury to find that retaliation, rather than the documented reduction and coverage judgments, was the but-for reason for selecting Benton.

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## Scores, comparators, and explanations

Benton's imported score fell from eighty-four to sixty-eight during calibration, while Wynn, Ibarra, and Keene retained or received favorable credits. Solis flagged inconsistent measurement windows and unsupported distinctions. Other modeled combinations retained Benton and could reach the savings target when paired with an expense consolidation. These facts permit criticism of Blue Cedar's process and make the selection less than arithmetically inevitable.

They do not, on this record, reasonably identify retaliation as the explanation. The workbook preserved its changes, the minutes identified the operational subjects being evaluated, and the retained managers carried functions Pike chose to preserve. The alternatives depended on different coverage judgments and a non-position expense item. Blue Cedar's later descriptions added completion, availability, continuity, and client confidence to the termination letter's general budget-and-redundancy explanation, but those subjects appeared in materials created before the decision. The detail evolved; the core account did not change in a way that would permit a finding that a retaliatory reason replaced the stated one.



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## Subordinate influence

Benton alternatively emphasizes that Voss entered important score reductions and made the excluded statement to Wynn. The admitted record allows a finding that Voss influenced calibration and supplied information considered in the process. It does not allow a finding that Voss caused Pike to select Benton because of protected activity. The motive-related statement is outside the merits record, and no admitted testimony or document attributes a retaliatory instruction, recommendation, or selection demand to Voss.

Pike reviewed the version history, approved the variances, compared the scenarios, and made the final choice. The evidence permits disagreement with his reliance on the calibrated values, but it does not show that he served as an uncritical conduit for a retaliatory decision made by someone else. A subordinate-influence theory still requires evidence connecting the subordinate's prohibited motive and conduct to the adverse decision. On the admitted facts, the connection depends on conjecture. That gap cannot be filled merely by combining Voss's participation with Pike's separate knowledge of Benton's activity.

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## Cumulative assessment and conclusion

We consider the evidence cumulatively. Benton showed protected activity, Pike's knowledge, close timing, substantial score changes, favorable comparator treatment, target-reaching alternatives, unresolved consistency flags, redistribution of her work, and explanations that became more detailed. Together those circumstances could cause a jury to doubt the rigor or fairness of the process. Rule 56, however, requires a reasonable basis for finding that retaliation was the real and but-for reason, not simply a basis for suspecting an imperfect business decision.

The admitted record contains no retaliatory statement tied to Pike, no admissible motive statement tied to Voss, and no evidence that the genuine reduction was arranged to reach Benton. The contemporaneous records consistently identify savings and operational coverage, even though their application was debatable. No reasonable jury could bridge the remaining causal gap without speculation. We affirm the narrow exclusion under the abuse-of-discretion standard and affirm summary judgment de novo. The judgment of the district court is **AFFIRMED**.